

SENATE No. 1299

The Commonwealth of Massachusetts

PRESENTED BY:

Sal N. DiDomenico

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act strengthening nondiscrimination policies.

PETITION OF:

NAME:

Sal N. DiDomenico

DISTRICT/ADDRESS:

Middlesex and Suffolk

SENATE No. 1299

By Mr. DiDomenico, a petition (accompanied by bill, Senate, No. 1299) of Sal N. DiDomenico for legislation relative to nondiscrimination. Labor and Workforce Development.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1160 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act strengthening nondiscrimination policies.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 151B of the General Laws, as appearing in the 2022 Official
2 Edition, is hereby amended by adding the following section:- "Section 11: Each executive
3 department and agency shall develop, adhere to and update a plan to address the
4 nondiscrimination provisions as set forth in this chapter. The plan shall apply to all personnel,
5 including, but not limited to, volunteers and interns, agency line staff, managers, administrators,
6 executives, contracted vendors and program staff (hereinafter "personnel"). Each plan shall
7 include, but not be limited to: descriptions of and statements prohibiting discrimination as
8 outlined in this chapter; procedures for collecting and maintaining demographic data; procedures
9 for all personnel and others to report discrimination or retaliation; a provision that reports of
10 discrimination or retaliation may be made anonymously; procedures for promptly responding to
11 and investigating reports of discrimination or retaliation; the range of disciplinary actions that

12 may be taken against a perpetrator for discrimination or retaliation; provided, however, that the
13 disciplinary actions shall include strategies for protecting a person who reports discrimination
14 from retaliation and provides information during an investigation of discrimination. The
15 nondiscrimination plan may detail a plan and timeline for personnel training on
16 nondiscrimination and equal access under chapter 151B of the general laws. The plan shall be
17 updated at least biennially.

18 SECTION 2. Each executive department and agency shall submit nondiscrimination
19 plans, as outlined in section 1, to the Clerks of the House and Senate, the Joint Committee on the
20 Judiciary, the Joint Committee on State Administration and Regulatory Oversight, the
21 Massachusetts Commission Against Discrimination, and Office of Diversity and Equal
22 Opportunity no later than January 1, 2027.